

Smt Manne Amareswari vs The State Of Andhra Pradesh, on 25 August, 2020

Author: U. Durga Prasad Rao

Bench: U. Durga Prasad Rao

HON'BLE SRI JUSTICE U. DURGA PRASAD RAO

Writ Petition No.12286 of 2020

ORDER:

The petitioner implores for a writ of mandamus declaring the inaction of the official respondents in respect of the petitioner's representation dated 06.07.2020 to provide police protection to her person and property in an extent of Ac.10.32 cents as illegal, arbitrary and for a consequential direction.

2. The petitioner's case in nut shell is thus. The 5th respondent is the brother of the petitioner. Their mother Vasundhara Devi executed a registered Settlement Deed dated 10.04.2017 bearing Document No.623/17 in favour of the petitioner and settled an extent of Ac.10.32 cents covered by Survey Nos.951/1, 952/1, 953, 954/2, 969/4 and 969/1 of Gowada Village, Amruthaluru Mandal, Guntur District and delivered possession to the petitioner and she has been in possession and enjoyment of the same. Her mother succeeded the said property from her father Pavuluri Venkaiah Chowdary, S/o. Achaiah and she obtained Pattadar Pass Book and Title Deeds.

(a) The 5th respondent was originally residing at Tenali and later shifted to Gowada village subsequent to death of his father in the year 2016. Her mother was also residing at Gowada. He and his family members ill-treated her mother and detained her in an illegal custody without providing food and raiment. Hence, the petitioner filed CrI.MP.No.816 of 2017 before the II Additional Judicial First Class Magistrate, Tenali under Section 97 Cr.P.C wherein the Court issued a 2 UDPR, J Search Warrant and got produced her mother in the Court. Since her mother was ill-treated by her brother, the Court handed over the custody of her mother to the petitioner. Her mother came to know that 5th respondent obtained two registered deeds from her i.e., registered Gift Deed vide document No.244/2017 and registered Settlement Deed vide document No.245/2017 dated 01.03.2017 in respect of Ac.6.90 cents of land of Gowada Village when she was seriously ill. Hence, her mother filed O.S.No.72/2017 on the file of XI Additional District Judge, Tenali seeking cancellation of the above documents and for permanent injunction restraining 5th respondent from alienating or mortgaging or interfering with her peaceful possession and enjoyment of the lands. The petitioner also, in her turn filed O.S.No.252/2017 on the file of I Additional Junior Civil Judge, Tenali seeking permanent injunction against her brother, his wife and daughter in respect of Ac.10.32 cents of Gowada village and the same is pending. In the meanwhile, her mother expired on 27.12.2019.

(b) While so, the 5th respondent and his family members started attacking the petitioner when she used to attend her agricultural operations. On her complaint, FIR No.66/2017 dated 07.09.2017 and FIR No.99/2019 dated 01.07.2019 were registered by the Police of Amruthaluru Police Station and the same are pending. This year on 28.06.2020 also, the petitioner lodged a complaint before the Inspector of Police about the attacks made by 5th respondent, his wife and their men, however, no action was taken. Hence, the petitioner 3 UDPR, J made a complaint on 06.07.2020 through 'Spandana' programme to the Superintendent of Police, Guntur Rural seeking protection to her life and property. However, there is no response from the Police.

Hence, the writ petition.

3. The 5th respondent filed counter inter alia contending thus. The Settlement Deed dated 10.04.2017 pleaded by the petitioner is false. The plea of the petitioner that her mother succeeded the property through her father Pavuluri Venkaiah Chowdary was also not true. According to the respondent, the petitioner's mother is the sister's daughter of Pavuluri Venkaiah Chowdary's wife. Venkaiah Chowdary treated her as foster daughter and after she attained puberty he performed her marriage with his wife's brother viz., Uppala Srimannarayana, who is the father of the petitioner and 5th respondent. The said Pavuluri Venkaiah Chowdary executed a registered Gift Deed dated 22.10.1953 in respect of Ac.10.32 cents conferring life interest in favour of the petitioner's mother and vested remainder to the sons born to her. If no sons are born to her, she shall enjoy the property with absolute rights. The 5th respondent is the only son to his mother Vasundhara Devi and hence, as per the terms of the Gift Deed dated 22.10.1953 he got absolute right, title and interest in the subject property of Ac.10.32 cents after the lifetime of his mother.

(a) During her lifetime, the 5th respondent was managing the cultivation affairs of the said land and he was in possession of the lands as a Manager and paying the amount after defraying the 4 UDPR, J expenses. The 5th respondent came to know that the petitioner collusively obtained a registered Gift Deed dated 10.04.2017 in respect of the aforesaid land, but his mother has no right to execute the Gift Deed and hence, the said document is null and void and does not bind the 5th respondent. In those circumstances, the 5th respondent filed O.S.No.50/2017 on the file of XI Additional District Judge, Tenali for declaration that he is the holder of vested remainder and for recovery of possession after the lifetime of his mother inter alia stating that he has been in possession of the said land as Manager of his mother. After filing of the suit also he sent two demands drafts dated 12.01.2018 and 21.01.2019 towards the income derived after deducting agricultural expenses for the years 2017-2018 and 2018- 2019. After the death of his mother, the 5th respondent has been continuing in possession and enjoyment of the said land with absolute title and interest in exclusion of one and all. The petitioner was never in possession of the said land.

(b) It is further contended that the petitioner in her turn filed O.S.No.252/2017 on the file of I Additional Junior Civil Judge, Tenali against the 5th respondent, his wife and daughter seeking perpetual injunction in respect of the subject land and sought for temporary injunction in I.A.No.505/2017. She mentioned in the plaint that when she approached the police authorities for police aid, they advised her to approach the Civil Court as the dispute being civil in nature. The ill-treatment of the mother by 5th respondent is denied. It is pleaded 5 UDPR, J that the petitioner

mislead her mother and filed Crl.M.P.No.816/2017 and took custody of her mother through Court. The registered Gift Deeds were never executed by his mother voluntarily. At the behest of the petitioner, her mother filed O.S.No.72/2017 against the 5th respondent and others. Admittedly, their mother expired on 27.12.2019 and thereafter he is continuing in possession of the said land with absolute rights. After the death of their mother, the 5th respondent filed I.A.No.____ of 2020 in O.S.No.50/2017 for amendment of the plaint and for perpetual injunction as he is continuing in possession of the said land. Basing on the alleged Gift Deed dated 10.04.2017, the petitioner fraudulently obtained Pattadar Passbook though she was never in possession of the subject land. However, basing on the application of 5th respondent, the Tahsildar passed orders in Rc.No.174/2017-01 dated 24.10.2017 showing the said lands in the webland as disputed land and mentioned them in the dispute register. Basing on the petitioner's representation dated 06.07.2020, the Inspector of Police, Tsundur sought information from the Tahsildar, Amruthaluru Mandal about the rights of the persons in respect of the subject lands as per the revenue records and the Tahsildar in turn instructed the Revenue Inspector to enquire and submit a detailed report. The Revenue Inspector on recording the statements of the neighbours submitted his report dated 27.07.2020 stating that the 5th respondent at present is in possession of the subject lands. Thus, the 5th respondent is in actual possession of the disputed 6 UDPR, J lands. The allegations that the petitioner is in possession and she leased out to third-parties and the 5th respondent causing obstruction to her are all false. He thus prayed to dismiss the writ petition.

4. Heard Sri Prasad Babu, counsel representing Sri Md. Saleem Pasha, learned counsel for petitioner, and learned Government Pleader for Home representing the respondents 1 to 4, and Sri N.Srirama Murthy, counsel for respondent No.5.

5. The main plank of argument of Sri Prasad Babu, counsel for petitioner is that the petitioner is the absolute owner of the subject lands which were gifted to her by her mother under a registered Gift Deed dated 10.04.2017 and ever since the petitioner has been in possession and enjoyment of the same. During the lifetime of her mother, she was ill-treated by the 5th respondent and so, the petitioner filed Crl.M.P.No.816/2017 on the file of II Additional Judicial First Class Magistrate, Tenali and by Court order her mother was produced in Court and custody was handed over to the petitioner. Learned counsel would submit that during her mother's stay at Gowada the 5th respondent obtained some Settlement Deeds by force and therefore, her mother filed O.S.No.72/2017 on the file of XI Additional District Judge, Tenali for cancellation of those documents. When the 5th respondent was obstructing the petitioner and her men from peacefully cultivating and enjoying the subject lands, the petitioner filed O.S.No.252/2017 on the file of I Additional Junior Civil Judge, 7 UDPR, J Tenali seeking permanent injunction and the same is pending. Earlier, the petitioner lodged reports against the 5th respondent and his men which were registered as Cr.No.66/2017 and Cr.No.99/2019 by the police of Amruthaluru Police Station. Learned counsel would vehemently argue that the subject property is in khas possession and enjoyment of the petitioner which she got from her mother. Her mother got the said property from her grandfather. Though the said land was conferred on her mother with limited interest by virtue of the Gift Deed dated 22.10.1953, however, with the advent of Section 14 of the Hindu Succession Act, 1956 the said limited interest was enlarged into her absolute estate and therefore, the 5th respondent cannot lay any claim in the subject land. Learned counsel further argued that at the

commencement of every agricultural year, the 5th respondent and his men used to cause obstruction to the petitioner and her men and therefore, already two FIRs were registered against them. He finally argued that if the police aid is not granted, the petitioner being a lady, cannot peacefully attend her agricultural operations. He argued that the 5th respondent is not in possession of the subject land and he himself has mentioned this fact in his suit in O.S.No.50/2017. He thus prayed to allow the writ petition.

6. Per contra, opposing the writ petition learned counsel for 5th respondent Sri N.Srirama Murthy would argue that admittedly the subject property belonged to Pavuluri Venkaiah Chowdary who is the maternal uncle of the petitioner's mother. He executed a Settlement 8 UDPR, J Deed dated 22.10.1953 and conferred life interest in favour of the petitioner's mother and vested remainder to her male progeny. Since the 5th respondent is the only male son to his parents, by virtue of the above term he got the subject property with absolute rights after the death of his mother on 27.12.2019. Even during her lifetime also, the 5th respondent was in possession of the subject lands as he used to look after the agriculture and was paying her the income after defraying the agricultural expenses. The petitioner was never in possession of the subject lands. Severely fulminating the petitioner's argument that the limited interest of the petitioner's mother was enlarged to an absolute estate by virtue of Section 14 of the Hindu Succession Act, learned counsel argued that since a limited interest was created in favour of the petitioner's mother by her uncle not in recognition of her pre existing rights, her limited interest would never enlarge into an absolute estate by virtue of Section 14 and such a plea is untenable. He further argued that in O.S.No.50/2017 filed by 5th respondent, he clearly mentioned that he was in possession of the suit lands as Manager and after the death of his mother he sought for recovery of those lands as a holder of vested remainder. That does not mean that he was not in physical possession of those lands. He thus prayed to dismiss the writ petition.

7. The point for consideration is whether there are merits in this writ petition to allow?

9 UDPR, J

8. Point: Admittedly and unfortunately, this is a fracas between the own siblings i.e., the sister (petitioner) and her brother (5th respondent) over Ac.10.32 cents of land. Whereas the petitioner claims the said property on the strength of a Gift Deed dated 10.04.2017, the 5th respondent challenges the validity of the Gift on the ground that his mother had only life interest, but not absolute right over the same, as by virtue of the Settlement Deed dated 22.10.1953, Pavuluri Venkaiah Chowdary, maternal uncle of their mother and original owner, had conferred only life interest in his mother and vested remainder to her male children. Of course, the petitioner argued that the life interest of the petitioner was enlarged into absolute right by virtue of Section 14 of the Hindu Succession Act but the said legal plea is traversed by the 5th respondent with a counter legal plea that since the property was not conferred on their mother in recognition of any of her pre-existing rights, Section 14 will not convert her limited interest into absolute right. It is a further admitted fact that both parties filed suits against each other which are pending.

9. In the above backdrop, it is needless to emphasize that a fierce tussel is going on in the Civil Courts between the petitioner and 5th respondent over the subject lands. In a case of this nature where the complicated questions of fact and law are involved which can only be resolved after taking evidence by the trial Courts, the constitutional Courts will not generally exercise the plenary jurisdiction under 10 UDPR, J Article 226 of the Constitution. In *State of Bihar v. Jain Plastics and Chemicals Limited*¹, the Supreme Court held thus:

"7. In our view, it is apparent that the order passed by the High Court is on the face of it illegal and erroneous. It is true that many matters could be decided after referring to the contentions raised in the affidavits and counter-affidavits, but that would hardly be ground for exercise of extraordinary jurisdiction under Article 226 of the Constitution in case of alleged breach of contract. Whether the alleged non-supply of road permits by the appellants would justify breach of contract by the respondent would depend upon facts and evidence and is not required to be decided or dealt with in a writ petition. Such seriously disputed questions or rival claims of the parties with regard to breach of contract are to be investigated and determined on the basis of evidence which may be led by the parties in a properly instituted civil suit rather than by a Court exercising prerogative of issuing writs."

10. In the instant case, whether the petitioner or the 5th respondent is in actual possession of the subject lands is a disputed question of fact, which can be resolved only by taking evidence, both oral and documentary of both parties. Further, whether the mother of petitioner and 5th respondent got only limited interest in the subject lands and if so, whether such limited interest was enlarged into absolute right by virtue of Section 14 of the Hindu Succession Act, 1956 is also a mixed question of facts and law, which can be better appreciated only after taking evidence. Therefore, the official respondent police cannot be found fault for not extending police aid in view of the family feud. Above all already a number of civil suits are pending between the parties and it appears so far neither the petitioner nor the 5th respondent obtained any interim injunction or similar order from the Court so as to enable the police to extend protection. Moreover since both the parties have already resorted to the MANU/SC/0731/2001 = AIR 2002 SC 206 11 UDPR, J jurisdiction of the Civil courts which will provide equal and more efficacious relief than the relief in the writ petition, on that ground also this court declines to entertain the writ petition. Needless to emphasise that in a plethora of decisions Hon'ble apex court and various High Courts have pellucidly laid down that where there exists an alternative and efficacious relief the Constitutional Courts will generally desist from entertaining the writ petitions for granting such reliefs. However, certain exceptions have been enumerated to this general principle. In *Whirlpool Corporation vs. Registrar of Trade Marks, Mumbai and others*², Hon'ble apex court held thus.

15. Under Article 226 of the Constitution, the High Court, having regard to the facts of the case, has discretion to entertain or not to entertain a writ petition. But the High Court has imposed upon itself certain restrictions one of which is that if an effective and efficacious remedy is available, the High Court would not normally exercise its jurisdiction. But the alternative remedy has been consistently held by this court not to operate as a bar in at least three contingencies, namely, where the Writ Petition has been filed for the enforcement of any of the Fundamental rights or where there has been

a violation of the principle of natural justice or where the order or proceedings are wholly without jurisdiction or the vires of an Act is challenged.

In the present case, in my considered view, no such exceptional circumstances surfaced so as to entertain the writ petition. In the light of the facts and circumstances, in my considered view, this writ petition is not maintainable and the parties have to vindicate their rights through the Civil Courts where the matter is subjudice. AIR 1999 SC 22 = MANU/SC/0664/1998 12 UDPR, J

11. With the above observations, this Writ Petition is dismissed. No costs. As a sequel, interlocutory applications, if any pending for consideration, shall stand closed.

_____ U. DURGA PRASAD RAO, J 25.08.2020 MVA / MS